46. Second, it was unfair to equate the 'weaker sections of society' with non-Brahmin Hindus, an amorphous grouping that had produced 'successive Vice Chancellors of great distinction', 'distinguished Judges', 'competent administrative officers', and 'physicians, surgeons & obstetricians of all-India reputation'.[14]

The third judge of the Madras High Court, Justice N.P. Somasundaram, interpreted the provisions of the Constitution quite differently from his colleagues, though he also hesitantly agreed that the Communal G.O. had to be struck down. He considered the use of the word 'only' in Article 15 significant. Discrimination *solely* on the basis of caste and religion was impermissible, but discrimination on the basis of caste and religion combined with other factors was not. While the government could not discriminate based on caste and religion alone, it could do so if it discriminated, say, based on caste combined with factors such as economic status and levels of education. He also did not lend much weight to the absence of a clause similar to Article 16(4) in Articles 15 and 29. If Article 16(4) simply gave effect to the state's obligation (under Article 46) to promote the educational interests of the 'weaker sections' of the people, the absence of a similar clause in Article 15 did not prevent the state from doing so. In other words, the state's obligation to promote the educational interests of the 'weaker sections' existed independently under Article 46, regardless of whether it was given further effect by a separate clause such as Article 16(4). Probably for the sake of unanimity and in the knowledge that an appeal to the Supreme Court was likely, Justice Somasundaram ultimately agreed with the conclusion that his colleagues arrived at, but 'not without hesitation'.[15] In all but name, Justice Somasundaram's was a dissenting opinion.

Once the Communal G.O. was struck down, discussions were afoot as to what next steps should be taken by the Madras government and the central government. About two weeks after the judgement was handed down by the high court, the law minister of Madras said in the legislative assembly that the government would file an appeal to the Supreme Court. Apart from the legal remedy of filing an appeal, the law minister made it